

		issues of comity, interest in adjudicating the issues, the prevention of multiple litigation and inconsistent result, judicial economy, and convenience of witnesses—this Court finds a stay is in order and resolution of the marriage dissolution in Korea should proceed first. Therefore, the unopposed Motion is GRANTED and this case is stayed. The Court sets an OSC re whether the stay should be lifted for December 10, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
105		<i>Off-calendar.</i>
106	Hackworth vs. Talend, 25-01469403	<i>Case Management Conference</i> <i>Demurrer to Amended Complaint</i> Defendant QLIKTECH INC., erroneously named as Talend ("Defendant") filed a Demurrer to the entire First Amended Complaint on the grounds that the Complaint is time barred and uncertain such that it fails to state facts sufficient to constitute the causes of action alleged. Plaintiff Jethro Hackworth, proceeding in proper ("Plaintiff") filed an opposition. The First Amended Complaint contains the following causes of action: (1) failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512, (2) waiting time penalties pursuant to Labor Code sections 201-203, and (3) breach of implied covenant of good faith and fair dealing. (ROA 39.) "[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.) "However, '[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.'" (<i>Ibid.</i>)

"No error or defect in a pleading is to be regarded unless it affects substantial rights." (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.) "The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (*Ibid.*)

I. STATUTE OF LIMITATIONS

Defendant argues that Plaintiff's causes of action are barred by the applicable statute of limitations. Defendant argues that the first and second causes of action for Labor Code violations are subject to a two year statute of limitations and began to accrue in 2018 when Plaintiff's employment with Defendant ended. (See FAC, ¶ 3 ["Plaintiff was employed by Talend until his separation in 2018."].) Defendant argues that the third cause of action for breach of implied covenant of good faith and fair dealing is subject to "either a four year (written contract) or two year (oral contract) statute of limitations. Cal. Civ. Proc. Code § 337(a) (four year limitations period for written contracts); Cal. Civ. Proc. Code § 339 (1) (two year limitations period for oral agreements)."

In opposition, Plaintiff argues that the statute of limitations shall be tolled because Plaintiff was pursuing his workers' compensation claims.

"The equitable tolling of statutes of limitations is a judicially created, nonstatutory doctrine." (*Hopkins v. Kedzierski* (2014) 225 Cal.App.4th 736, 746.) "It is 'designed to prevent unjust and technical forfeitures of the right to a trial on the merits when the purpose of the statute of limitations—timely notice to the defendant of the plaintiff's claims—has been satisfied.'" (*Ibid.*) "Where applicable, the doctrine will suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness." (*Ibid.*)

"In the majority of cases in which courts apply the equitable tolling doctrine, the

		plaintiff possesses several legal remedies, and reasonably and in good faith pursues one designed to lessen the extent of his or her injuries or damage." (<i>Hu v. Silgan Containers Corp.</i> (1999) 70 Cal.App.4th 1261, 1270.) "In these cases, if the defendant is not prejudiced, the running of the limitations period is tolled as to the other available remedies." (<i>Ibid.</i>) "Equitable tolling requires that three essential elements be satisfied by the party seeking the tolling: "(1) timely notice to the defendant in filing the first claim; (2) lack of prejudice to defendant in gathering evidence to defend against the second claim; and, (3) good faith and reasonable conduct by the plaintiff in filing the second claim." (<i>Aguilera v. Heiman</i> (2009) 174 Cal.App.4th 590, 598.) "The requirement of timely notice basically means the first claim must have been filed within the statutory period; the filing of the first claim also must have alerted the defendant in the second claim of the need to begin investigating the facts that form the basis for the second claim." (<i>Id.</i>, 598-599.) "Normally, this means the defendant in the first claim is the same one being sued in the second." (<i>Ibid.</i>) "The second prerequisite in essence translates into a requirement that the facts of the two claims be identical or at least so similar that the defendant's investigation of the first claim will put him in a position to fairly defend the second." (<i>Ibid.</i>) "So long as the defendant is timely placed on notice by the first claim so he can investigate in order to appropriately defend the second claim, it is irrelevant whether those two claims are alternative or parallel, consistent or inconsistent, compatible or incompatible." (<i>Ibid.</i> [internal quotations omitted].) "It is fundamental that the primary purpose of statutes of limitation is to prevent the assertion of stale claims...." (<i>Scharer v. San Luis Rey Equine Hospital, Inc.</i> (2012) 204 Cal.App.4th 421, 429.) "[T]he right to be free of stale claims in time comes to prevail over the right to prosecute them." (<i>Id.</i>, 429-430.) "However, courts have adhered to a general policy which favors relieving plaintiff from the bar of a limitations statute when,
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	possessing several legal remedies he [or she], reasonably and in good faith, pursues one designed to lessen the extent of his [or her] injuries or damage.” (<i>Id.</i>, 430.) Importantly, “[a] general demurrer based on the statute of limitations is only permissible where the dates alleged in the complaint show that the action is barred by the statute of limitations.” (<i>Roman v. County of Los Angeles</i> (2000) 85 Cal.App.4th 316, 324.) Here, the court finds that it is unable to calculate the statute of limitations on the face of the SAC. While Plaintiff alleges that his employment with Defendant terminated in 2018, Plaintiff also alleges that he pursued a worker’s compensation claim that ended in 2024. There are no allegations as to when the worker’s compensation proceedings began and therefore the Court is unable to determine the length of which the statute of limitations should be equitably tolled. As alleged, the dates in the SAC do not establish that the statute of limitations bars the action. The Demurrer is OVERRULED as to this argument. <i>II. CAUSES OF ACTION</i> A. First Cause of Action for Failure to Pay Earned Wages/Wage Theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512 and Second Cause of Action for Waiting Time Penalties pursuant to Labor Code sections 201-203 Plaintiff’s first cause of action is for failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512. Plaintiff’s second cause of action is for violation of waiting time penalties pursuant to Labor Code sections 201-203. Labor Code section 201 states: “If an employer discharges an employee, the wages earned and unpaid at the time of discharge are due and payable immediately.” (Lab. Code, § 201, subd. (a).) Labor Code section 203 states:
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		"If an employer willfully fails to pay, without abatement or reduction, in accordance with Sections 201, 201.3, 201.5, 201.6, 201.8, 201.9, 202, and 205.5, any wages of an employee who is discharged or who quits, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action therefor is commenced; but the wages shall not continue for more than 30 days." (Lab. Code, § 203, subd. (a).) Labor Code section 226.7 states: "(a) As used in this section, "recovery period" means a cooldown period afforded an employee to prevent heat illness. (b) An employer shall not require an employee to work during a meal or rest or recovery period mandated pursuant to an applicable statute, or applicable regulation, standard, or order of the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, or the Division of Occupational Safety and Health. (c) If an employer fails to provide an employee a meal or rest or recovery period in accordance with a state law, including, but not limited to, an applicable statute or applicable regulation, standard, or order of the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, or the Division of Occupational Safety and Health, the employer shall pay the employee one additional hour of pay at the employee's regular rate of compensation for each workday that the meal or rest or recovery period is not provided. (d) A rest or recovery period mandated pursuant to a state law, including, but not limited to, an applicable statute, or applicable regulation, standard, or order of the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, or the Division of Occupational Safety and Health, shall be counted as hours worked, for which there shall be no deduction from wages. This subdivision is declaratory of existing law. (e) This section shall not apply to an employee who is exempt from meal or rest or recovery period requirements pursuant to
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	other state laws, including, but not limited to, a statute or regulation, standard, or order of the Industrial Welfare Commission." (Lab. Code, § 226.7, subds. (a) – (e).) Labor Code section 510 states: "(a) Eight hours of labor constitutes a day's work. Any work in excess of eight hours in one workday and any work in excess of 40 hours in any one workweek and the first eight hours worked on the seventh day of work in any one workweek shall be compensated at the rate of no less than one and one-half times the regular rate of pay for an employee. Any work in excess of 12 hours in one day shall be compensated at the rate of no less than twice the regular rate of pay for an employee. In addition, any work in excess of eight hours on any seventh day of a workweek shall be compensated at the rate of no less than twice the regular rate of pay of an employee. Nothing in this section requires an employer to combine more than one rate of overtime compensation in order to calculate the amount to be paid to an employee for any hour of overtime work. The requirements of this section do not apply to the payment of overtime compensation to an employee working pursuant to any of the following: (1) An alternative workweek schedule adopted pursuant to Section 511. (2) An alternative workweek schedule adopted pursuant to a collective bargaining agreement pursuant to Section 514. (3) An alternative workweek schedule to which this chapter is inapplicable pursuant to Section 554. (b) Time spent commuting to and from the first place at which an employee's presence is required by the employer shall not be considered to be a part of a day's work, when the employee commutes in a vehicle that is owned, leased, or subsidized by the employer and is used for the purpose of ridesharing, as defined in Section 522 of the Vehicle Code. (c) This section does not affect, change, or limit an employer's liability under the workers' compensation law." (Lab. Code, § 510.) Labor Code section 512 states:
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"An employer shall not employ an employee for a work period of more than five hours per day without providing the employee with a meal period of not less than 30 minutes, except that if the total work period per day of the employee is no more than six hours, the meal period may be waived by mutual consent of both the employer and employee. An employer shall not employ an employee for a work period of more than 10 hours per day without providing the employee with a second meal period of not less than 30 minutes, except that if the total hours worked is no more than 12 hours, the second meal period may be waived by mutual consent of the employer and the employee only if the first meal period was not waived." (Lab. Code, § 512, subd. (a).)

Here, Defendant attacks the allegations in the FAC by arguing that Plaintiff only alleges conclusory allegations and does not allege sufficient facts to support the claims. Notably, Defendant failed to address each statute pursuant to which Plaintiff brings his claims and only generally argues that Plaintiff has not alleged facts to support a claim for overtime, failure to pay meal or rest period penalties, or wages due at termination. This alone is grounds to overrule the demurrer.

Regardless, the Court finds that Plaintiff has alleged sufficient facts to give Defendant notice of the issues sufficient to enable preparation of a defense. In particular, Plaintiff alleges the following facts in support of his cause of action for failure to pay earned wages and wage theft:

"This Complaint clarifies that the action seeks civil recovery of unpaid wages and backpay that were not included or resolved in Plaintiff's prior workers' compensation case (ADJ13166524). The action is independent of that settlement and arises from Talend's continuing failure to pay earned compensation owed under California law." (FAC, ¶ 1.)

"During his employment, Plaintiff performed his duties diligently and contributed

		substantially to Talend's operations and profitability." (FAC, ¶ 4.) "After separation, Plaintiff discovered that Talend failed to pay earned wages, including overtime, meal and rest period compensation, and other legally required payments." (FAC, ¶ 5.) "The current civil case seeks to recover unpaid wages, interest, and statutory penalties arising from Talend's willful failure to pay compensation lawfully earned before and after separation." (FAC, ¶ 7.) "Talend failed to pay Plaintiff for overtime, rest and meal break premiums, and final wages due at the time of separation in 2018." (FAC, ¶ 11.) Plaintiff also attached a number of exhibits to the FAC that provide further information as to the Labor Code violations Plaintiff asserts. The Court finds that these allegations are sufficient to state the first cause of action is for failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512 and second cause of action is for violation of waiting time penalties pursuant to Labor Code sections 201-203. The demurrer is OVERRULED as to the first cause of action and second cause of action. <i>B. Breach of Implied Covenant of Good Faith And Fair Dealing</i> Plaintiff's third cause of action is for breach of implied covenant of good faith and fair dealing. "The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purposes." (<i>Berlanga v. University of San Francisco</i> (2024) 100 Cal.App.5th 75, 88, reh'g denied (Mar. 15, 2024).) "Without a contractual relationship, [a plaintiff] cannot state a cause of action for breach of the implied covenant." (<i>Ibid.</i>)
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	"In essence, the covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract." (<i>Berlanga v. University of San Francisco</i> (2024) 100 Cal.App.5th 75, 88, reh'g denied (Mar. 15, 2024).) "It 'cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement.' " (<i>Ibid.</i>) Plaintiff alleges the following in support of his third cause of action for breach of implied covenant of good faith and fair dealing: "Every employment relationship and contractual obligation in California includes an implied covenant of good faith and fair dealing." (FAC, ¶ 19.) "Talend violated this covenant by intentionally withholding earned compensation, misrepresenting its corporate status to evade responsibility, and disregarding Plaintiff's rights as a former employee." (FAC, ¶ 20.) "These acts were carried out maliciously and in bad faith, causing Plaintiff continuing economic harm and emotional distress." (FAC, ¶ 21.) Here, the Court finds that Plaintiff has not alleged sufficient facts to establish the contractual relationship between Plaintiff and Defendant pursuant to which the implied covenant of good faith can be established. The demurrer to the third cause of action for breach of implied covenant of good faith and fair dealing is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
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107	Anabi Real Estate Development, LLC vs. DiMaggio, 24-01408901	Defendants Richard A. DiMaggio and Roxanne T. DiMaggio, individually and as Trustees of The DiMaggio Family Trust Dated May 4, 2022 ("DiMaggio Defendants") move for an order expunging three Notices of Pendency of Action filed by plaintiffs Anabi Real Estate Development, LLC, Anabi Oil Corporation, RADC Enterprises, Inc., Rebel Land and Development, LLC, Beck Oil, Inc., S&M Oil Corporation, and Nevada AK, Inc. ("Plaintiffs") and awarding them attorney's fees and costs jointly and severally against Plaintiffs in the amount of \$18,085.00. "A lis pendens—also called a notice of pendency of action—is a document filed with a county recorder that provides constructive notice of a pending lawsuit affecting the real property described in the notice. [Citations.] Any party may record a lis pendens when the lawsuit involves a 'real property claim.' " (<i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 275.) "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (Code Civ. Proc., § 405.31.) " 'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Code Civ. Proc., § 405.4.) A notice of lis pendens shall also be expunged if the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) Plaintiffs allege that the DiMaggio Defendants obtained money from them through false statements which induced Plaintiffs to enter
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